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Case Number: 26SMCV00634 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JORDAN BROWN, a Minor, by and through his guardian ad litem Safoura Khanbabfour,

Plaintiff,

v.

UBER TECHNOLOGIES, INC., et al.,

Defendants.

Case No.: 26SMCV00634

Hearing Date: August 20, 2026

[TENTATIVE] order RE:

DEFENDANTS UBER TECHNOLOGIES,

INC., rasier, llc, And RASIER-ca,

LLC MOTION TO compel

arbitration

BACKGROUND

This case arises from a car accident involving a ride on the Uber platform. Plaintiff Jordan Brown through his guardian ad litem (Safoura Khanbabapour) claims that he was injured while riding a car driven by Defendant Hayk Elizbaryan, on the Uber riding platform. Plaintiff claims Elizbaryan violated the California Vehicle Code, although he does not specify what provision of the Code was violated or otherwise describe how Elizbaryan was driving negligently.

Plaintiff's guardian ad litem ("Account Holder") ordered the Uber ride. Account Holder signed up on the Uber app on August 12, 2022 and the Terms of service applicable at the time of sign up were the April 4, 2022 Terms. (Pare Decl. ¶ 9 & Exs. A-B). On or about January 24, 2023, Account Holder was presented with an in-app blocking pop-up screen in the Rider App notifying her that Uber had updated its Terms of Use. (Pare Decl. ¶ 10 & Ex. C.) The in-app blocking pop-up screen had a header in large type which stated "We've updated our terms." (Id.) It also stated in large type, "We encourage you to read our Updated Terms in full" and under that message had the phrases "Terms of Use" and "Privacy Notice," which were displayed underlined and in bright blue text, all of which set the text apart from other text on the screen and indicated a hyperlink. (Id.)

When a user clicked either hyperlink, the Terms of Use or Privacy Notice, respectively, were displayed. (Id. at ¶ 10.) The in-app blocking pop-up screen additionally had a clickbox which a user could select and next to the clickbox it expressly stated that: "By checking the box, I have reviewed and agreed to the Terms of Use and acknowledge the Privacy Notice." (Id. ¶ 10-14 & Ex. C.) Account Holder expressly consented to the January 17, 2023 Terms on January 24, 2023, by clicking the checkbox. (Id. at ¶ 14-15 & Ex. B-D.)

The aforementioned Terms, inclusive of the January 17, 2023 Terms, contain a clear and conspicuous Arbitration Agreement. (Pare Decl., ¶ 15 & Ex. D.) The January 17, 2023 Terms state in relevant part: "(a) Agreement to Binding Arbitration Between You and Uber. You and Uber agree that any dispute, claim or controversy arising out of or relating to (a) these terms or the existence, beach, termination, enforcement, interpretation, or validity thereof, or (b) your access to or use of the Services at any time, whether before or after the date you agree to the Terms, will be settled by binding arbitration between you and Uber and not in the court of law." (Ex. D to Pare Decl. Arbitration Agreement [emphasis added].)

Although Plaintiff did not agree to the terms himself, the arbitration agreement provides that it "shall be binding upon, and shall include any claims brought by or against any third-parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims are in relation to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties; those claims shall also be subject to this Arbitration Agreement." (Ex. D to Pare Decl, Section 2(a) [Emphasis added.])

Account Holder further agreed to delegate to the arbitrator the threshold questions of whether the case is subject to arbitration, explicitly agreeing that "An arbitrator shall also have exclusive authority to resolve all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable, or illusory and any defense to arbitration, including without limitation waiver, delay, laches, or estoppel." (Ex. D to Pare Decl. at Section 2(a).)

This hearing is on Uber's motion to compel arbitration based on the arbitration provision in its "Terms of Use". According to Uber, the Court must compel arbitration pursuant to the Federal Arbitration Act ("FAA") because a written arbitration agreement exists that binds Plaintiff. Uber argues that the Account Holder's arbitration agreement is binding on Plaintiff because he is a third party beneficiary as he was a passenger on a ride ordered through the Uber platform, and the question of whether the arbitration agreement covers Plaintiff's claims has been delegated to the arbitrator.

LEGAL STANDARD

The arbitration agreement at issue here provides that the “Federal Arbitration Act will govern its interpretation and enforcement and proceedings.” (Exhibit C to Pare Decl., Section 2, Rules and Governing Law.) However, for purposes of this case, there is no meaningful difference between the FAA and the California Arbitration Act (“CAA”), except as discussed in the last section of this Order.

Under both the FAA and the CAA, the court first must determine whether there was an agreement to arbitrate. The moving party must recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden “by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” At this step, a movant need not “follow the normal procedures of document authentication” and need only “allege the existence of an agreement and support the allegation as provided in rule [3.1330].” If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence, including for example, disputing the authenticity of their signatures. (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

Once the Court concludes that an agreement exists, it would normally then resolve whether the agreement is enforceable, including whether it is unconscionable or whether the moving party has waived the agreement to arbitrate. However, where the parties expressly delegate these issues to the arbitrator (as is the case here), the Court must respect the parties’ decision except when the delegation clause is itself revocable under state contract defenses such as fraud, duress, or unconscionability. (Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 892.) An unconscionability challenge must be specifically directed at the delegation provision, not the entire arbitration agreement. (Id. at 895.)

ANALYSIS

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination.¿(Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.) Here, there can be no serious dispute that Uber and the Account Holder had an arbitration agreement.

In California, “[g]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (Craig v. Brown & Root, Inc. (2000) 84 Cal.App.4th 416, 420.) Mutual assent to contract “may be manifested by written or spoken words, or by conduct,” and acceptance of contract terms may be implied through action or inaction. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 850.)

Here, mutual assent is shown by Account Holder’s clicking on a box agreeing to the terms of the arbitration agreement. (Id. ¶¶ 9-13; Exhibits A, F.) “A ‘clickwrap’ agreement is one in which an internet user accepts a website's terms of use by clicking an ‘I agree’ or ‘I accept’ button, with a link to the agreement readily¿available.” (Sellers v. JustAnswer, LLC (2021) 73 Cal.App.5th 444, 463.)¿Clickwrap agreements¿are generally considered¿enforceable. (Id. at 470.)¿Clickwrap agreements¿are¿enforceable¿even as to consumers who do not read them “because the website had put the consumer on constructive notice of the contractual terms.” (Id. at 461.)

The Court then turns to the issue of whether Plaintiff (who is a non-signatory to the arbitration agreement) is nevertheless bound by it. Generally, “a party is not obligated to arbitrate unless he or she has expressly agreed to do so by entering into a valid and enforceable written contract with the party who seeks arbitration.” (Grey v. American Mgmt. Services (2012) 204 Cal.App.4th 803, 808.) There are certain conditions in which a non-signatory to an arbitration agreement may be compelled to arbitrate:¿“(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) [as a] third-party beneficiary.” (Suh v. Superior Court (2010) 181 Cal.App.4th 1504, 1513.) Uber contends that two apply here: estoppel and third-party beneficiary.

As to estoppel, Uber argues that a non-signatory plaintiff may be estopped from refusing to arbitrate because he received a direct benefit from Uber’s contract with the Account Holder. The Court agrees.

Direct benefits estoppel applies when nonsignatories embrace the contract and its benefits during the life of the contract but then disavow the arbitration clause in the contract when litigation arises. (Noble Drilling Servs. v. Certex USA, Inc., supra, 620 F.3d at 473.)¿The focus is not upon whether the nonsignatory is suing under contract containing the arbitration clause, but instead is upon “whether the evidence showed that the nonsignatory received direct and substantial benefits from that agreement.” (Wood v.¿PennTexRes., L.P.¿(S.D. Tex. 2006) 458 F.Supp.2d 355, 368.) Under¿direct benefits estoppel, it is unnecessary to establish that the¿nonsignatory¿is seeking to enforce the terms of the contract containing the arbitration clause or that the nonsignatory's claims are intimately founded in or intertwined with the contract.¿ (See¿id.¿at 369¿[court may compel¿nonsignatory¿to arbitrate under¿direct benefits estoppel¿theory even if suit is not based on contract containing arbitration clause].)¿

Here, Plaintiff clearly benefited from the terms of the contract between the Account Holder and Uber. Absent the agreement, Account Holder would not have been able to order an Uber ride, and absent Account Holder’s ability to do so, Plaintiff would not have had the benefit of a ride, albeit one that ultimately ended up in a car accident causing injuries to Plaintiff. Accordingly, the Court concludes that Uber has established that Plaintiff is estopped from arguing that he is not bound by the arbitration agreement. Because the Court has found that the direct benefits estoppel theory applies, the Court does not go on to consider whether Plaintiff is a third party beneficiary of Uber’s contract with Account Holder.

Plaintiff argues that the arbitration agreement cannot be enforced against him because he is a minor. At the time of the accident, he was 10 years old. He is currently 14 years old.

However, the contract was entered into by his mother, and a parent can bind a minor child to an arbitration agreement. (Doyle v. Giuliucci (1965)¿62 Cal. 2d 606, 610.) The California Supreme Court reasoned that an arbitration provision does no more than specify a forum for the settlement of disputes. “It invests parents and guardians with considerably less power over causes of action than the Legislature has authorized by permitting them to compromise minors’ claims.” (¿Code Civ. Proc., § 372;¿Prob. Code, § 1431.)¿ “The issues are not compromised but are adjudicated by the arbitrators; a guardian or guardian ad litem must conduct the proceedings on behalf of the child (¿Civ. Code, § 42;¿Code Civ. Proc., § 372); and both the issue of arbitrability and the award are subject to judicial review (¿Code Civ. Proc., §§ 1281.2 ,¿1286.2 ,¿1287,¿1294).” (Id.)

Plaintiff also argues that he may disaffirm the arbitration agreement under Family Code section 6700, which states that “a minor may make a contract in the same manner as an adult, subject to the power of disaffirmance” provided by Family Code section 6710. Section 6710 provides that “a contract of a minor may be disaffirmed by the minor before majority or within a reasonable time afterwards.” But this section applies to contracts of minors and protects them from their own improvidence in assuming contractual¿obligations. It does not apply to contracts between adults and is therefore not controlling on the question of a parent’s power to bind her child to arbitrate by entering into a contract which benefits the child.

Plaintiff also argues that Uber’s paralegal cannot authenticate the arbitration agreement. However, “for purposes of a petition to compel¿arbitration, it is not necessary to follow the normal procedures of document authentication.” In any event, Account Holder confirms that she has “an Uber account. The account is in my name and is associated with my personal telephone number. I opened the account in or around August 2022. I opened it for myself.” (Khanbabapour Declaration, ¶ 5).

In sum, the Court concludes that there is an arbitration agreement which binds Plaintiff. Further, given the delegation clause, any other issues relating to arbitrability are for the arbitrator, not the Court. When parties “clearly and unmistakably” demonstrate their intent to have the arbitrator decide arbitrability, those issues must be referred to the arbitrator. (Rent-A-Center, W., Inc. v. Jackson (2010) 561 U.S. 63, 70; Brennan v. Opus Bank (9th Cir. 2015) 796 F.3d 1125, 1132.) The only exception is where the delegation clause itself is alleged to be unconscionable.

Here, the April 4, 2022 and January 17, 2023 Terms explicitly outline the clear delegation of authority to the arbitrator to determine threshold issues. Specifically, the Terms state: “Only an arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute arising out of or relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. An arbitrator shall also have exclusive authority to resolve all threshold arbitrability issues, including issues relating to whether these Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel.” (Pare Decl., ¶ 9; and Ex. D.) As such, the Parties expressly agreed all threshold issues should go to the arbitrator.

In addition, the arbitration provision incorporated the ADR Services, Inc. Arbitration Rules ("ADR Rules"). Rule 8 of the ADR Rules provides: "The arbitrator shall have the power to rule on his or her own jurisdiction, including any objections with respect to the existence, scope, or validity of the arbitration agreement." (ADR Arbitration Rules, Rule 8 (January 21, 2021.) By incorporating ADR Rules, "the parties clearly evidenced their intention to accord the arbitrator the authority to determine issues of arbitrability." (Rodriguez v. Am. Techs., Inc. (2006) 136 Cal.App.4th 1110, 1123.)

The Court turns now to the question of whether the action should be stayed or arbitration denied because Plaintiff's claims against the Uber driver are not arbitrable. On this question, the CAA and FAA differ.

Section 1281.2 of the CAA vests discretion in trial courts to "stay or deny arbitration" where at least one of three statutory exceptions applies. (Gravillis v. Coldwell Banker Residential Brokerage Co. (2006) 143 Cal.App.4th 761, 783; § 1281.2, subds. (a)-(c).) One of those exceptions provides that the court may deny arbitration under subdivision (c) of section 1281.2, where there is a "pending court action . . . with a third party" that creates "a possibility of conflicting rulings on a common issue of law or fact." (§ 1281.2, subd. (c); see Acquire II, Ltd. v. Colton Real Estate Group (2013) 213 Cal.App.4th 959, 967.)

For purposes of the third party litigation exception, a "third party" means a party that is not bound by the arbitration agreement. (RN Solution, Inc. v. Catholic Healthcare West (2008) 165 Cal.App.4th 1511, 1519.) Section 1281.2, subdivision (c), "addresses the peculiar situation that arises when a controversy also affects claims by or against other parties not bound by the arbitration agreement." (Cronus Investments v. Concierge Services (2005) 35 Cal.4th 376, 393.) In this case, the third party is Elizbaryan, the Uber driver.

However, section 1281.2, subdivision (c) is inapplicable because the arbitration provision expressly provides that the FAA "governs its interpretation and enforcement". "[T]he parties may limit the trial court's authority to stay or deny arbitration under the CAA by adopting the more restrictive procedural provisions of the FAA." (Valencia, 185 Cal.App.4th at 157.)

Unlike the CAA, the FAA "does not permit a trial court to stay or deny arbitration in those circumstances. Rather, the FAA requires the arbitration of all claims within the scope of an arbitration provision even if the action includes nonarbitrable claims by or against third parties." (Id. at 157; accord, Mastick v. TD Ameritrade, Inc., 209 Cal.App.4th at 1263.)

"[T]he FAA's procedural provisions (9 U.S.C. §§ 3, 4, 10, 11) do not apply unless the contract contains a choice-of-law clause expressly incorporating them." (Valencia, 185 Cal.App.4th at p. 174.) "The question of whether the Agreement incorporated the FAA's procedural provisions, thereby eliminating the trial court's authority under section 1281.2[, subdivision] (c), 'is a question of law involving interpretation of statutes and the contract (with no extrinsic evidence).'"" (Id. at 161-162.)

Here, the arbitration agreements state that the FAA governs the "interpretation and enforcement" of the arbitration provisions. Courts have construed similar provisions as an agreement to arbitrate pursuant to the FAA's procedural provisions. (See Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 342-343, 346 (FAA governed motion to compel instead of CAA where agreement stated its "enforcement" was 'governed by the [FAA]'].) Therefore, the procedural provisions of the CAA, including section 1281.2, subdivision (c), do not apply in this case and are not a basis for denying the motion to compel arbitration of the arbitrable claims.

CONCLUSION

For the foregoing reasons, the Court GRANTS Uber's motion to compel arbitration and stays the action pending completion of the arbitration.

IT IS SO ORDERED.

DATED: August 20, 2026 ___________________________

Edward B. Moreton, Jr.

Judge of the Superior Court